nick@warwickriskmanagement.com

From: Joe Edwards <joe.edwards@crsblaw.com>
Sent: 08 October 2018 16:43
To: Nick Stoop; Nicola Johnson
Cc: Peter Levaggi
Subject: FW: Barclays [W-EU.FID1281191]

Nicola/Nick

Please see below. I'm being chased for a response by Withers.

Have you been able to check my draft letter to Dentons in relation to a meeting? Also, are you able to return the signed letter of engagement and provide the ID? I also look forward to hearing from you in relation to the CFA.

Kind regards

Joe Edwards | Senior Associate
for and on behalf of Charles Russell Speechlys LLP

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From: Chesser, Andrew <Andrew.Chesser@withersworldwide.com>
Sent: 08 October 2018 16:22
To: Chesser, Andrew <Andrew.Chesser@withersworldwide.com>; Joe Edwards <joe.edwards@crsblaw.com>; Nicola Johnson <nicola.johnson21@gmail.com>
Cc: Peter Levaggi <Peter.Levaggi@crsblaw.com>
Subject: RE: Barclays [W-EU.FID1281191]

Joe

I have left you some messages. I would be grateful for your views/an update please.

Regards

Andrew Chesser
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From: Chesser, Andrew [mailto:Andrew.Chesser@withersworldwide.com]
Sent: 21 September 2018 15:29
To: Joe Edwards <joe.edwards@crsblaw.com>; Nicola Johnson <nicola.johnson21@gmail.com>
Cc: Peter Levaggi <Peter.Levaggi@crsblaw.com>
Subject: RE: Barclays [W-EU.FID1281191]

Joe

I agree with what you say. I guess this is all about timing as to how and when we press Barclays. Nicola would like to know their opening position but, on the other hand, if they are being coy, that could lead to a better outcome. When do you think this meeting could take place and how does that fit with Nicola's timing? Do you think that one of us could get a WP starting position/worst case scenario figure from then which would be subject to further discussion? They have to start somewhere.

On the authority letter, Nicola has already signed and returned it. I am sure that she will happily sign another one/a variation. I will leave that to you if you want to produce one.

I am away next week.

regards

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From: Joe Edwards [mailto:joe.edwards@crsblaw.com]
Sent: 21 September 2018 08:38
To: Chesser, Andrew <Andrew.Chesser@withersworldwide.com>; Nicola Johnson <nicola.johnson21@gmail.com>
Cc: Peter Levaggi <Peter.Levaggi@crsblaw.com>
Subject: RE: Barclays [W-EU.FID1281191]

Andrew and Nicola

As Andrew has stated, Dentons have not given any good reason for failing to provide the redemption figure. To a lender, it simply doesn't matter what the sale price is in its calculation of the amount due. As to the other reason, being the date of completion, this is only relevant to the extent Barclays is charging interest and other sums on the capital balance. At the very least, the bank could give a general indication, for instance with a hypothetical date of completion.

In reality, it is a positive sign Barclays is not looking to set out a redemption amount in open correspondence.

Andrew, my only comment on the letter of authority is whether CRS can also be added in addition to Withers?

As to our next step, we are in the process of inviting Dentons/Barclays to a roundtable meeting to discuss the lending and repayment. I will propose this on a WP basis.

Regards

Joe Edwards | Senior Associate
for and on behalf of Charles Russell Speechlys LLP

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From: Chesser, Andrew [mailto:Andrew.Chesser@withersworldwide.com]
Sent: 19 September 2018 15:16
To: Nicola Johnson <nicola.johnson21@gmail.com>
Cc: Peter Levaggi <Peter.Levaggi@crsblaw.com>; Joe Edwards <joe.edwards@crsblaw.com>
Subject: Barclays [W-EU.FID1281191]

Nicola

I attach the letter we have received from Dentons. Please can you sign and date the attached letter of authority and return the original to me asap so that we can tick that box.

You will see that they are somewhat hesitant to provide a redemption figure. The reasons they give are, of course, not good reasons to avoid answering the question.

Joe, any thoughts on this and have you had any more correspondence with Dentons?

Regards

Andrew

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